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PREPARED BY AND RETURN TO:
Craig A. Minegar, Esq. (Julie)
Greenberg Traurig, P.A.
111 North Orange Avenue, 20th Floor
Orlando, FL 32801

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10252000 02:25:26pm
OR Bk 6115 Pg 4156
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----------{SPACE ABOVE FOR RECORDING PURPOSES}----------

DECLARATION OF NON-EXCLUSIVE EASEMENT RIGHTS

THIS DECLARATION OF NON-EXCLUSIVE EASEMENT RIGHTS (this "Declaration") is made as of this 24th day of October, 2000, by **DEBRA, INC.**, a Florida corporation ("DEBRA"), whose address is 2100 South Hiawassee Road, Orlando, Florida 32835.

BACKGROUND FACTS

A. DEBRA is the owner and developer of certain real property located within the City of Orlando, Florida, known as "MetroWest."

B. A portion Tract 25, METROWEST UNIT TWO, according to the plat thereof recorded in Plat Book 20, Page 142, Public Records of Orange County, Florida, has been platted into lots to create a subdivision known as "Palma Vista." The original plat for Palma Vista is METROWEST UNIT TWO REPLAT, according to the plat thereof recorded in Plat Book 23, Pages 120 and 122, Public Records of Orange County, Florida, and a portion of the original plat was replatted as PALMA VISTA REPLAT, according to the plat thereof recorded in Plat Book 29, Page 45, Public Records of Orange County, Florida. The subdivision, as evidenced by the two (2) above referenced plats, is herein referred to as "PALMA VISTA."

C. DEBRA holds fee simple title to the portion of Tract 25 not included within the plats for PALMA VISTA, consisting of approximately 28.226 acres, and referred to herein as the "Property".

D. DEBRA encumbered the lots at PALMA VISTA with a certain Declaration of Protective Covenants and Restrictions for PALMA VISTA recorded September 14, 1989, in Official Records Book 4115, Page 939, Public Records of Orange County, Florida (the "Community Declaration"); and formed the PALMA VISTA Homeowners' Association, Inc. (the "Association"), to hold title to any common property within PALMA VISTA, to administer the covenants and restrictions and to collect assessments.

E. In 1994, DEBRA caused the City of Orlando to vacate the public streets (the "Streets") within PALM VISTA and the individual lot owners, including DEBRA, conveyed whatever interest each had in the Streets to the Association. DEBRA caused the Community Declaration to be amended by a certain Amendment to Declaration of Protective Covenants and

Restrictions for PALMA VISTA recorded April 7, 1994, in Official Records Book 4723, Page 3053, Public Records of Orange County, Florida (the "Amendment"). The Amendment set forth the rights of the homeowners in relationship to the Streets and further reserved to DEBRA the right to grant a non-exclusive and perpetual right of ingress and egress over and across the Streets shown on the plats of PALMA VISTA and owned by the Association for the benefit of persons who own the Property, or portions thereof.

F. By this Declaration, DEBRA desires to create the non-exclusive and perpetual right of ingress and egress over and across the Streets as contemplated by the Amendment.

G. This Declaration will place in writing the terms and conditions of the easement grants identified herein.

DECLARATION

NOW, THEREFORE, DEBRA, reserving the right to grant easements in the Amendment and being the title holder of all of the Property, hereby declares and establishes a non-exclusive and perpetual right of ingress and egress over and across the Streets for the benefit of the persons who own portions of the Property, including, but not limited to, their guests, invitees and domestic help, and for delivery and pickup, for fire protection services, police and other authorities of law, for the United States Postal Service carriers, for representatives of utility companies authorized by DEBRA to serve the Property, for holders of mortgage liens encumbering any portion of the Property and for such other persons as DEBRA or its successors in title to the Property from time to time may designate. The easement rights contained in this Declaration are granted for the best interests of the owners of any portion of the Property and will run with title to each portion of the Property.

GENERAL CONDITIONS

1. **Severability**. If any provision of this Declaration or the application thereof to any party or under any circumstances is held to be invalid or unenforceable to any extent, then the remainder of this Declaration or the application of such provisions to the other party or under such other circumstances will not be affected thereby and will be enforced to the greatest extent permitted by law.

2. **Waiver**. No consent or waiver, expressed or implied, by any party to or of any breach or default by the other party in the performance by such other party of the obligations thereof under this Declaration will be deemed or construed to be a consent or waiver to or of any other breach or default in the performance by such other party of the same or any other obligations of such other party under this Declaration. Failure on the part of one party to complain of any act or failure to act of the other party or to declare such other party in default, regardless of how long such failure continues, will not constitute a waiver by such party of its rights under this Declaration.

3. **Attorneys' Fees**. In the event that either party finds it necessary to employ an attorney to enforce any provision of this Declaration, the prevailing party will be entitled to

recover from the non-prevailing party its attorneys' fees and costs incurred in connection therewith, at both trial and appellate levels; including bankruptcy proceedings, in addition to any other performances or damages to which such party may be entitled.

4. **Time of the Essence**. Time is of the essence of this Declaration.

5. **Amendment**. Neither this Declaration nor any provision hereof may be waived, modified, amended, discharged or terminated except by an instrument in writing signed by the party against whom the enforcement of such waiver, modification, amendment, discharge or termination is sought, and then only to the extent set forth in such instrument.

6. **Interpretation and Construction**. THIS DECLARATION WILL BE INTERPRETED AND CONSTRUED IN ACCORDANCE WITH THE LAWS OF THE STATE OF FLORIDA, AND ANY TRIAL OR OTHER PROCEEDING WITH RESPECT TO THIS DECLARATION WILL TAKE PLACE IN ORANGE COUNTY, FLORIDA.

7. **Waiver of Jury Trial.** EVERY PARTY BOUND BY THIS DECLARATION BY ACCEPTING LEGAL TITLE TO THE PROPERTY DOES HEREBY KNOWINGLY, VOLUNTARILY, INTENTIONALLY AND IRREVOCABLY WAIVE ANY RIGHT SUCH PARTY MAY HAVE TO A JURY TRIAL IN EACH AND EVERY JURISDICTION IN ANY ACTION, PROCEEDING OR COUNTERCLAIM BROUGHT BY ANY PARTY AGAINST ANY OTHER PARTY IN RESPECT OF ANY MATTER ARISING OUT OF OR IN CONNECTION WITH THIS DECLARATION.

8. **Benefit**. All of the covenants, terms, agreements, conditions and restrictions set forth in this Declaration are intended to be and will be construed as covenants "running with the land," binding upon, inuring to the benefit of and enforceable by the title holders of the Property, or any portion thereof, their respective successors in title, and any lender holding a mortgage on the Property or a portion thereof. Provided, however, nothing herein shall be deemed to grant to any tenant, occupant or other party any rights or remedies as a third party beneficiary or otherwise.

IN WITNESS WHEREOF, DEBRA has caused this instrument to be executed in its name, the day and year first above written.

Signed, sealed and delivered
in the presence of:

Julie L Fisher
Signature of witness
Print name: Julie L. Fisher

Signature of witness
Print name:

DEBRA, INC., a Florida corporation

By:
Camille A. Chebeir, President

(CORPORATE SEAL)

STATE OF FLORIDA
COUNTY OF ORANGE

OR Bk 6115 Pg 4159
Orange Co FL 2000-0451939

Recorded - Martha O. Haynie

The foregoing instrument was acknowledged before me this 23rd day of October, 2000 by Camille A. Chebeir, as President of DEBRA, INC., a Florida corporation, on behalf of the corporation. He is [ ] personally known to me or has produced NY drivers license as identification.

Julie L. Fisher
NOTARY PUBLIC
Print Name: _____
My Commission Expires:

Julie L Fisher
My Commission CC946521
Expires July 16, 2004